

Paschimanchal Vidyut Vitran Nigam Ltd. & Anr. v. The Electricity Ombudsman & Another

High Court of Judicature at Allahabad · Division Bench · 15 March 2023 (dismissed for want of prosecution; order-sheet 11.9.2012 to 15.3.2023; interim stay 17.2.2016) · WRIT - C No. 45990 of 2012 · **Licensee's writ challenging the Electricity Ombudsman's order dated 23.6.2011 dismissed for want of prosecution (15.3.2023) after a decade; the interim stay of the Lokpal's order (granted 17.2.2016 on a prima facie Anis Ahmad view that bill-correctness lies under clause 6.5) stands vacated; the competence point was not decided.**

Source file: WRIC(A)_45990_2012.pdf

HEADNOTE

Order-sheet in a licensee's writ against the Electricity Ombudsman, ending in dismissal for want of prosecution. Paschimanchal Vidyut Vitran Nigam Ltd. challenged an order of the Electricity Lokpal (Ombudsman) dated 23 June 2011 passed on a consumer's (respondent no.2's) complaint questioning a supplementary consumption bill. On 17 February 2016 the Division Bench (Arun Tandon and Harsh Kumar, JJ.), accepting on a prima facie view the licensee's submission - founded on U.P. Power Corporation Ltd. v. Anis Ahmad, (2013) 8 SCC 491 - that the U.P. Electricity Supply Code, 2005 provides under clause 6.5 the mechanics for challenging the correctness of bills, that the consumer's proceedings before the Consumer Grievance Redressal Forum questioning the supplementary bill were not maintainable, and that for the same reason the Electricity Lokpal had no competence to go into the correctness of the bill, held that 'the matter does require enquiry by this Court' and stayed the Lokpal's order pending the next date. The interim order was continued through 2016-2018, but the writ was never argued; on 15 March 2023 a Division Bench (Suneet Kumar and Rajendra Kumar-IV, JJ.), noting the petitioners' counsel was not interested in arguing and the matter had been pending for ten years, dismissed the writ for want of prosecution and vacated the interim order. The competence of the CGRF and the Ombudsman over bill-correctness was thus never finally decided; the Lokpal's order revived on the vacation of the stay.

FACTUAL SUMMARY

Paschimanchal Vidyut Vitran Nigam Ltd. and another (the licensee) filed Writ-C No.45990 of 2012 before the Allahabad High Court against the Electricity Ombudsman (respondent no.1) and the consumer (respondent no.2), challenging an order of the Electricity Lokpal dated 23 June 2011. The Lokpal's order had been passed on the consumer's complaint questioning a supplementary bill issued in the matter of consumption of electricity, the consumer having first approached the Consumer Grievance Redressal Forum. On 17 February 2016 the Bench (Arun Tandon and Harsh Kumar, JJ.) recorded the licensee's submission that the Supply Code, 2005 provides the mechanics for challenging the correctness of bills under clause 6.5, that the CGRF proceedings questioning the supplementary bill were not maintainable, and that the Electricity Lokpal had no competence to decide the correctness of the bill, reliance being placed on U.P. Power Corporation Ltd. v. Anis Ahmad, (2013) 8 SCC 491. Holding that the matter required enquiry, the Court stayed the Lokpal's order dated 23 June 2011 till the next date; the interim order was continued/extended on 16 March 2016, 5 April 2016 and thereafter. The matter then passed through several Division Benches with repeated adjournments and requests for time to file a supplementary affidavit. On 15 March 2023 the Bench (Suneet Kumar and Rajendra Kumar-IV, JJ.), observing that the petitioners' counsel sought adjournment and appeared not interested in arguing and that the matter had been pending for ten years, dismissed the writ for want of prosecution in the presence of the consumer's counsel and vacated the interim order.

REUSABLE CONSTRUCTIONS

1. On a licensee's challenge the Court took the prima facie view - relying on U.P. Power Corporation Ltd. v. Anis Ahmad - that the correctness of a supplementary consumption bill must be challenged under clause 6.5 of the U.P. Electricity Supply Code, 2005, and that neither the Consumer Grievance Redressal Forum nor the Electricity Ombudsman (Lokpal) is competent to decide such bill-correctness, staying the Lokpal's order pending enquiry.
order of 17.2.2016
2. A prima facie interim observation of this kind does not decide the point: where the petitioner-licensee thereafter fails to prosecute, the writ is dismissed for want of prosecution and the interim stay stands vacated, leaving the impugned Ombudsman's order to revive and operate. order of 15.3.2023

INTERPLAY · UP-2005::6.5

OBITER

Prima facie, the correctness of a supplementary consumption bill is challengeable only under clause 6.5, and the CGRF / Electricity Ombudsman lacks competence to decide bill-correctness (Anis Ahmad); the Lokpal's order stayed pending enquiry, but the point was left undecided on dismissal for want of prosecution

QUESTION

Whether, on the licensee's challenge, the Consumer Grievance Redressal Forum and the Electricity Ombudsman (Lokpal) had competence to entertain a consumer's challenge to the correctness of a supplementary consumption bill, or whether that challenge lay only under clause 6.5 of the U.P. Electricity Supply Code, 2005?

HOLDING

The Court took only a prima facie view and did not finally decide the question. It recorded the licensee's submission that the Supply Code, 2005 provides under clause 6.5 the mechanics for challenging the correctness of bills, that the consumer's proceedings before the CGRF questioning the supplementary bill were not maintainable, and that for the same reason the Electricity Lokpal had no competence to enter into the correctness of the bill, relying on *U.P. Power Corporation Ltd. v. Anis Ahmad*. Holding that 'the matter does require enquiry by this Court', the Bench stayed the Electricity Lokpal's order dated 23 June 2011 pending the next date. This was an interim, prima facie view: the writ was ultimately dismissed for want of prosecution on 15 March 2023 without the competence point being decided, and the interim order stood vacated. [order of 17.2.2016](#)

EVIDENCE “the Electricity Supply Code 2005 provides for the mechanics for challenging the correctness or otherwise of the bills issued by the licensee under clause 6.5. The proceedings, which had been initiated before Consumer Grievance Redressal Forum by respondent no. 2 for questioning the supplementary bill, which was issued in the matter of consumption of electricity, was not maintainable.” [order of 17.2.2016](#)

EVIDENCE “The matter does require enquiry by this Court. Till the next date of listing the order passed by the Electricity Lokpal dated 23rd June, 2011 shall remain stayed.” [order of 17.2.2016](#)

FLAG Order-sheet of 11 pages, dated orders from 11.9.2012 to 15.3.2023, no printed page numbers; pins are order dates. The prima facie observation and stay are of the 17.2.2016 order (Arun Tandon and Harsh Kumar, JJ.); the operative disposal is the dismissal for want of prosecution of 15.3.2023 (Suneet Kumar and Rajendra Kumar-IV, JJ.). Here the petitioner is the licensee, the respondents the Ombudsman and the consumer.

PRINCIPLE TAGS

bill-correctness-under-clause-6.5-not-cgrf-or-ombudsman Prima facie, the correctness of a consumption / supplementary bill is challengeable only under clause 6.5 of the Supply Code; the CGRF and the Electricity Ombudsman lack competence over bill-correctness (Anis Ahmad). Same Anis Ahmad line as SCJ-1561; cf. SCJ-049 and SCJ-256 on the limits of CGRF / Ombudsman competence. Lead authorities: *U.P. Power Corporation Ltd. v. Anis Ahmad*. [order of 17.2.2016](#)

want-of-prosecution-dismissal-vacates-interim-stay A writ pending for a decade in which the petitioner-licensee is not interested in arguing is dismissed for want of prosecution and the interim stay of the impugned order stands vacated - no merits decision, the Ombudsman's order reviving. [order of 15.3.2023](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CGRF AND THE ELECTRICITY OMBUDSMAN HAD COMPETENCE TO DECIDE THE CORRECTNESS OF THE SUPPLEMENTARY BILL, OR WHETHER THE CHALLENGE LAY ONLY UNDER CLAUSE 6.5 OF THE SUPPLY CODE

Not finally decided; the Court granted an interim stay on a prima facie view that the matter required enquiry, but the writ was dismissed for want of prosecution on 15.3.2023 and the interim order vacated. [order of 15.3.2023](#)

RELATED CASES — SEE ALSO

SCJ-1561 — Applied Anis Ahmad to hold Permanent Lok Adalat proceedings on bill quantum without jurisdiction and to require recourse to clause 6.5 - the same Anis Ahmad / clause 6.5 proposition the licensee invoked here against the CGRF and Ombudsman.

SCJ-049 — CGRF and Ombudsman proceedings quashed as without jurisdiction where the statute created its own adjudicatory forum - a like limit on the Forum's / Ombudsman's competence.

SCJ-256 — On the outer limits of CGRF jurisdiction (Ombudsman's order on the point under challenge); companion on the competence of the CGRF / Ombudsman.

SCJ-1035 — Consumer relegated to a clause 6.5 complaint for a bill dispute - the same clause 6.5 mechanism the licensee here urged as the exclusive route for challenging bill-correctness.

SCJ-757 — Interim stay of recovery followed by dismissal of the writ in default (outcome none) - the same interim-stay-then-default-dismissal procedural pattern as here.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>U.P. Power Corporation Ltd. & Ors. v. Anis Ahmad</i> (2013) 8 SCC 491 Supreme Court of India	The Consumer Grievance Redressal Forum and the Electricity Ombudsman are not fora competent to decide the correctness of bills / questions of assessment; a consumer's challenge to the correctness of a bill lies under the mechanism of the Electricity Supply Code (clause 6.5), not before the CGRF or the Ombudsman.	Relied on (prima facie) to hold the CGRF proceedings not maintainable and the Electricity Lokpal without competence, and to stay the Lokpal's order pending enquiry. order of 17.2.2016	Petitioner	Relied on

SCJ-1565 · Paschimanchal Vidyut Vitran Nigam Ltd. & Anr. v. The Electricity Ombudsman & Another · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.